Final Action Agenda/Minutes are supplemented by audio and video recordings of the meetings, as well as transcripts. Video recordings of Village Council meetings from June 8, 2016 forward, as well agendas, staff reports, resolutions, ordinances, and other documents related to the meetings can be viewed online at https://estero-fl.gov/agendas/ at the corresponding meeting date.

APPROVED BY THE COUNCIL
NOVEMBER 6, 2019

FINAL ACTION AGENDA/MINUTES

VILLAGE COUNCIL MEETING

Village of Estero Council Chambers
9401 Corkscrew Palms Circle
Estero, FL 33928
October 16, 2019 9:30 a.m.

1. **CALL TO ORDER:** 9:30 a.m.

INVOCATION: Pastor Nolen Rollins from Legacy Church.

PLEDGE OF ALLEGIANCE: Led by Mayor Ribble.

ROLL CALL: Present: Mayor Bill Ribble - District 1, Vice Mayor Katy Errington - District 4, Councilmember Howard Levitan - District 2, Councilmember Jon McLain - District 3, Councilmember Jim Boesch - District 5 (left the meeting at 11:50 a.m.), Councilmember Nick Batos - District 6, and Councilmember Jim Wilson - District 7.

Also present: Village Manager Steve Sarkozy, Matthew Roepstorff, Esq. (on behalf of Village Attorney Burt Saunders), Assistant to Village Manager Kyle Coleman, Public Works Director David Willems, Finance Director Lisa Roberson, Community Development Director Mary Gibbs, and Village Clerk Kathy Hall.

2. **APPROVAL OF AGENDA, ADDITIONS, AND DELETIONS:**

Motion: Move to approve the agenda.

Motion by: Vice Mayor Errington
Seconded by: Councilmember Boesch

Action: Approved the agenda.

3. **PUBLIC COMMENT ON NON-AGENDA ITEMS:**

Richard Ferreira, Bonita Springs, former Bonita Springs Deputy Mayor, spoke regarding Coconut Road.

4. PROCLAMATIONS:

(a) Darren Nelson, Estero High School Football Coach

(b) Mason Crowell, 1st Annual Jaws vs. Claws MVP

Proclamations presented by Mayor Ribble.

Present: Darren Nelson, Mason Crowell, Gary White, Athletic Director, Chris Patricca, Lee County School Board Member and Florida School Board Association Vice President; and, Mason Crowell's mother and grandmother.

5. CONSENT AGENDA:

(a) October 2, 2019 Council Meeting Minutes

Motion: Move to approve the Consent Agenda.

Motion by: Councilmember Levitan
Seconded by: Councilmember Batos

Action: Approved the Consent Agenda.

6. CONSIDERATION OF ITEMS DEFERRED FROM CONSENT AGENDA: None.

7. FIRST READING OF ORDINANCE:

(a) Ordinance No. 2019-29 An Ordinance of the Village Council of the Village of Estero, Florida, Approving with Conditions a Rezoning from Commercial Planned Development to Mixed Use Planned Development to Allow a Multiple Family Project and Commercial Development on Property Located 1,000 feet West of Interstate 75 and South of Corkscrew Road Consisting of Approximately 43 Acres; Providing for Conflicts; Providing for Severability; and Providing an Effective Date

Staff Presentation/Comments: Village Clerk Hall; Community Development Director Gibbs.

Council Questions or Comments: Councilmembers Levitan, Boesch, McLain, Batos, Wilson, and Vice Mayor Errington.

Motion: Move to pass first reading of Ordinance No. 2019-29.

Motion by: Councilmember Levitan
Seconded by: Councilmember Boesch

Action: Passed first reading of Ordinance No. 2019-29.

Vote: (Roll call)
Aye: Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions:

8. ACTION ITEMS:

(a) Amend Fee Schedule to Establish a Reduced Fee for Private Provider Projects

Resolution No. 2019-22 A Resolution of the Village Council of the Village of Estero, Florida, Amending the Fee Schedule to Establish a Reduced Fee for Contractors that Hire a Private Provider for Plan Review and Building Inspections; Amending Resolution No. 2015-68; and Providing an Effective Date

Staff Presentation/Comments: Village Manager Sarkozy; Community Development Director Gibbs; Village Clerk Hall.

Council Questions or Comments: Councilmembers Batos, McLain, Levitan, and Boesch.

Public Comment: None.

Motion: Move to adopt Resolution No. 2019-22 establishing a fee under the Community Development Fee Schedule, to allow reduced fees for private provider projects.

Motion by: Councilmember Levitan
Seconded by: Councilmember Wilson

Action: Adopted Resolution No. 2019-22.

Vote: (Roll call)
Aye: Councilmembers Levitan, McLain, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Nay: Councilmember Boesch
Abstentions:

9. PUBLIC COMMENT ON NON-AGENDA ITEMS: None.

10. COUNCIL COMMUNICATIONS / FUTURE AGENDA ITEMS:

Council Comments: Councilmembers McLain, Boesch, Batos, Wilson, Vice Mayor Errington and Mayor Ribble.

The meeting went into recess at 10:48 a.m. and reconvened at 10:58 a.m.

11. VILLAGE ATTORNEY'S REPORT:

(a) Consider Lien Mitigation Request from Joseph Bruce Relating to his Property at 20511 Port Drive in the Village of Estero

Staff Presentation/Comments: Matthew Roepstorff, Esq.; Stanley Knight, Code Enforcement Manager.

Council Questions or Comments: Councilmembers Boesch, Levitan, Batos, McLain, Wilson, Vice Mayor Errington and Mayor Ribble.

Motion: Move to approve the lien mitigation request from Mr. Bruce releasing any outstanding liens against the Property in exchange for payment of a reduced fine of $5,000 and $90 for administrative cost.

Motion by: Councilmember Levitan
Seconded by: Councilmember Boesch

Action: Motion failed.

Vote: (Roll call)
Aye: Councilmembers Levitan, McLain, Boesch
Nay: Councilmembers Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Abstentions:

Motion: Move to approve the lien mitigation request from Mr. Bruce releasing any outstanding liens against the Property in exchange for payment of a reduced fine of $2,000 and $90 for administrative cost.

Motion by: Councilmember Wilson
Seconded by: Councilmember Batos

Action: Approved the lien mitigation request from Mr. Bruce releasing any outstanding liens against the Property in exchange for payment of a reduced fine of $2,000 and $90 for administrative cost.

Vote: (Roll call)
Aye: Councilmembers Levitan, McLain, Boesch, Batos, Wilson, Vice Mayor Errington, and Mayor Ribble
Nay:
Abstentions:

12. VILLAGE MANAGER'S REPORT: None.

Adjourn Regular Session and Convene Workshop Items

11. WORKSHOP ITEMS:

(a) 2019 Village of Estero Legislative Priorities

Staff Presentation/Comments: Village Manager Sarkozy.

Council Questions or Comments: Councilmember Batos.

Public Comment: None.

(b) Code Compliance Mitigation and Payment Update

Staff Presentation/Comments: Village Manager Sarkozy; Community Development Director Gibbs.

Council Questions or Comments: Councilmembers Batos, Levitan, Boesch, McLain, Vice Mayor Errington and Mayor Ribble.

Public Comment: None.

(c) Corkscrew Road Widening Update

Staff Presentation/Comments: Public Works Director Willems.

Council Questions or Comments: Councilmembers Batos, McLain, Levitan, Vice Mayor Errington and Mayor Ribble.

Public Comment: None.

A motion to adjourn was made and duly passed.

12. ADJOURNMENT: 12:14 p.m.

ATTEST:

By: _____
Kathy Hall, MMC, Village Clerk

VILLAGE OF ESTERO, FLORIDA

By: _____
Bill Ribble, Mayor